

No. 36034/5/85-Estt(SCT)
Government of India
Ministry of Personnel, P.G. & Pensions
(Department of Personnel & Training)

New Delhi, the 27th Oct, 1986.

NOTIFICATION

GSR-In exercise of the powers conferred by the proviso the article 309 of the Constitution, the President hereby makes the following rules further to amend the Ex-Servicemen (Re-employment in Central Civil Service and Posts) Rules, 1979 Namely :-

1. (a) These rules may be called the Ex-servicemen (Re-employment in Central Civil Service and Posts)Amendment Rules, 1986.

(b) They shall come into force on the date of their publication in the Official Gazette.
2. In rule 2 of the Ex-Servicemen (Re-employment in Central Civil Service and Posts) Rules, 1979 for clause (c) the following clause shall be substituted, namely :-
 - (c) 'Ex-Servicemen' means a person, who has served in any rank (whether as a combatant or as a non-combatant) in the Regular Army, Navy and Air Force of the Indian Union but does not include a person who has served in the Defence Security Corps, the General Reserve Engineering Force, the Lok Sahayak Sena and the Para Military Forces; and
 - (i) who has retired from such service after earning his/her pension; or
 - (ii) who has been released from such service on medical grounds attributable to military service or circumstances beyond his control and awarded, medical or other disability pension; or
 - (iii) who has been released, otherwise than on his own request, from such service as a result of reduction in establishment; or
 - (iv) who has been released from such service after completing the specific period of engagement otherwise than at his own request or by way of dismissal or discharge on account of misconduct or inefficiency, and has been given a gratuity; and includes the personnel of the Territorial Army of the following categories, namely :-
 - (i) pension holders for continuous (embodied) service;
 - (ii) persons with disability attributable to military service; and
 - (iii) gallantry award winners.

Explanation : The persons serving in the Armed Forces of the Union, who on retirement from service would come under the category of 'ex-Servicemen' may be permitted to apply for re-employment one year before the completion of the specified terms of engagement and avail themselves of all concessions available to ex-Servicemen but shall not be permitted to leave the uniform until they complete the specified term of engagement in the Armed Forces of the Union.

Note : The principal rules were published vide notification No. GSR 1530, dated the 29th Dec., 1979 in the Gazette of India, Part-II, Section 3, Sub-Section (i) at pages 3004 - 3005.

Sd/-
(BATA K. DEY)
Director (JCA)